

ETHICAWKS

Forensic Governance & Compliance Consultancy

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CONSOLIDATED PROTECTED DISCLOSURE FULL PARLIAMENTARY & JUDICIAL EVIDENCE PORTFOLIO

IN THE MATTER OF
WILBUR WILLIAM MATTHEE

v

**AFROCENTRIC INVESTMENT CORPORATION / MEDSCHEME
HOLDINGS (PTY) LTD
& OTHERS**

Complainant / Applicant:

Wilbur William Matthee

Qualification:

RN | BTech | PGDip Health Services
Management (NQF 8)

Portfolio Prepared By:

EthicHawks Forensic Governance &
Compliance Consultancy

Portfolio Updated:

April 2026

Active Case References:

2026-066952 | 2026-077546 | WECT23564-25 |
WECT24486-25 | B-BBEE 5/02/2026 | CAS
705/3/2026

CONFIDENTIAL — PROTECTED BY LEGAL PRIVILEGE — PROTECTED DISCLOSURES ACT 26 OF 2000

PART A — EXECUTIVE SUMMARY & KEY FINDINGS

This Consolidated Evidence Portfolio is submitted as a formal protected disclosure in terms of the Protected Disclosures Act 26 of 2000 (as amended). It is intended for presentation to Parliament, the relevant Portfolio Committees, and all judicial and regulatory forums seized of this matter. It documents a sustained, systemic pattern of governance failure, discrimination, retaliation, and institutional obstruction perpetrated against a formally disabled whistleblower — a Specialist Registered Nurse (NQF Level 8) — by AfroCentric Investment Corporation, its subsidiary Medscheme Holdings (Pty) Ltd, and a cascade of regulatory bodies that have failed to discharge their statutory mandates.

A.1 The Core Disclosure

Wilbur William Matthee, founder of EthicHawks Forensic Governance & Compliance Consultancy, was employed by Medscheme Holdings (a division of AfroCentric Health) as a Case Manager in the Active Disease Risk Management Unit from 2 May 2024. During his employment he identified, documented, and formally disclosed:

- A Priority 1 systemic integration gap between the Gexus claims system and the Disease Management System (DMS), causing clinically incorrect non-adherence letters to be dispatched to vulnerable elderly GEMS beneficiaries.
- Disability discrimination, unlawful salary deduction of 40.47% (R14,811.77) in breach of BCEA Section 34(2), and a sustained pattern of retaliation following each protected disclosure.
- Gender identity harassment ('Wilma' incident) and the subsequent institutional whitewash of a formal complaint.
- B-BBEE fronting: recruitment as 'Specialist: Care Manager' (NQF Level 8) but contracted and certificated as 'Care Coordinator' — a deliberate title suppression for B-BBEE scorecard benefit without corresponding economic entitlement.
- UIF non-compliance: June 2025 contributions deducted but not remitted, evidenced by uFiling records showing 'No Information' — a criminal offence under the Unemployment Insurance Contributions Act 4 of 2002 (SAPS CAS 705/3/2026).
- A forensic payroll discrepancy: SARS/UIF-declared gross salary of R27,725.66 against payslip gross of R21,777.04 for July 2025 — a R5,948.62 misrepresentation to government authorities in the identical pay cycle as the unlawful deduction.

A.2 Ten Key Findings

FINDING 1

Continuous Disability Discrimination: Respondent held formal psychiatric diagnosis (severe depression and PTSD — Dr Jacques Malan, FCPSYCH(SA)) prior to imposing the unlawful salary deduction. Accommodation was refused. The disability was subsequently weaponised in sworn CCMA proceedings as a 'cynical excuse.'

FINDING 2

Unlawful Salary Deduction: 40.47% (R14,811.77) deducted in July 2025 without consultation, without written consent, and in excess of the statutory 25% cap under BCEA Section 34(2). The employer's own acknowledgement of the cap (Jones communication, 24 July 2025) while defending the deduction establishes wilful non-compliance.

FINDING 3	Forensic Payroll Misrepresentation: SARS/UIF-declared salary (R27,725.66) does not correspond to payslip gross (R21,777.04) for July 2025 — a R5,948.62 discrepancy in the same pay cycle as the unlawful deduction. This elevates the matter beyond a labour dispute to potential statutory misrepresentation to government authorities.
FINDING 4	Gender Identity Discrimination ('Wilma'): Public misgendering in team communication on 23 September 2025, followed by a sham investigation dismissing the incident as a 'typo' and leaving the complainant in the hostile reporting line. Constitutes unfair discrimination under EEA Section 6(1).
FINDING 5	B-BBEE Fronting (Prima Facie): Recruited as 'Specialist: Care Manager'; contracted as 'Care Coordinator' (Grade B4M1); performed management functions (13+ staff oversight, Health & Safety Acting Chairperson); Certificate of Service deliberately suppresses NQF Level 8 title. Employer written admission (19 January 2026) confirms naming convention 'not applied to your department.'
FINDING 6	Gexus-DMS Integration Gap — Systemic Patient Safety Risk: A structural design flaw between the Gexus claims system and Disease Management System generates false non-adherence letters to GEMS beneficiaries. Root Cause Analysis confirms this is architectural, not incidental, affecting all members transitioning from acute to chronic benefit. 1.9 million GEMS beneficiaries are at risk. The Board received a Priority 1 Material Risk Report and suppressed it.
FINDING 7	Automatically Unfair Constructive Dismissal: Resignation on 12 December 2025 was caused by objectively intolerable conditions created by the Respondent. The employer's opposing CCMA affidavit — attacking the complainant's character under oath — constituted the final act of intolerability. Sections 186(1)(e) and 187(1)(f) of the LRA apply, read with PDA Section 3.
FINDING 8	Institutional Cascade Failure: Eleven regulatory and institutional engagements; nine deflections. CCMA (Commissioner pre-judged the PDA claim before hearing); DEL (declined BCEA jurisdiction; UIF referral incomplete); SAPS (initially refused to open criminal docket — reversed by Brigadier Naidoo); CMS (declined jurisdiction; re-engaged April 2026); JSE (declined under Listings Requirements); SAHRC (referred back to CCMA); B-BBEE Commission (ignored fronting evidence, failed to use subpoena powers under Section 13K).
FINDING 9	Humanitarian Crisis — Induced Destitution: The unlawful deduction and subsequent bad faith by the Respondent and institutional failures have produced: four months rental arrears; confirmed eviction threat; no running water since January 2026; personal possessions seized by loan sharks; SANC deregistration (cannot practise nursing in 2026); retirement fund depleted (R48,400); formally diagnosed severe depression and PTSD;

self-represented in nine concurrent regulatory proceedings with no legal aid.

FINDING 10

Access to Justice Obstruction: OCJ portal — five submissions, four rejections, including rejection reason 'good day you put date'; CCMA mailbox full on three occasions; Registrar's office failed to provide court audio recording; Labour Court call centre unreachable; Delft SAPS unlawfully refused to open criminal case. These failures constitute a systemic violation of the Section 34 constitutional right of access to courts.

PART B — LEGAL FRAMEWORK

This matter engages the following legislative and constitutional frameworks, each with specific provisions breached:

LEGISLATION	SPECIFIC PROVISION	BREACH IDENTIFIED
Protected Disclosures Act 26 of 2000	Sections 1, 3, 6, 7	Retaliation; occupational detriment; constructive dismissal
Labour Relations Act 66 of 1995	Sections 185, 186(1)(e), 187(1)(f), 5	Automatically unfair constructive dismissal
Employment Equity Act 55 of 1998	Sections 6(1), 6(3), 10, 11, 60	Gender identity & disability discrimination; failure to accommodate
BCEA Act 75 of 1997	Sections 34, 34(2), 77A	Unlawful deduction >25% cap; no written consent; Certificate misrepresentation
Companies Act 71 of 2008	Sections 76, 77, 162(5)(c)	Director delinquency; breach of fiduciary duty; gross negligence
B-BBEE Act 53 of 2003	Sections 1(c), 13J, 13J(5), 13K	Fronting; title suppression; false documentation
Medical Schemes Act 131 of 1998	Sections 1, 7, 44, 47, 58	Administrator maladministration; beneficiary risk; accreditation breach
UIF Contributions Act 4 of 2002	Section 56 (Criminal)	Non-remittance of June 2025 contributions — SAPS CAS 705/3/2026
Financial Sector Regulation Act 9 of 2017	Market conduct provisions	Governance failure; retaliation against whistleblower
Constitution Act 108 of 1996	Sections 9, 10, 14, 23, 34, s7(2)	Equality; dignity; privacy; labour rights; access to courts; Biowatch principle
King IV (JSE Incorporated)	Principles 2, 3, 14, 16	Board failure; ethics; remuneration; stakeholder responsiveness
Nursing Act 33 of 2005	Sections 56(1)(a), (c), (d); Rules 15(1)(c), (h), (k), (m)	Professional misconduct (Jones & Mashele) — SANC complaint active

PART C — MASTER CHRONOLOGICAL RECORD

The following is a condensed master chronology drawn from the full Master Forensic Governance & Regulatory Register (EthicHawks, 03 April 2026), spanning 148 documented entries from January 2024 to April 2026. The record is organised by phase.

Phase 1 — Recruitment & Bait-and-Switch (January – May 2024)

- 11 January 2024: Recruitment initiated for 'Specialist: Care Manager' role — three interview invitations, assessment, fingerprint check.
- 2 April 2024: Offer issued for 'Care Coordinator' (Grade B4M1) despite Specialist recruitment. Contract signed 9 April 2024. Title suppression confirmed in writing. This is the foundational B-BBEE fronting act.
- 2 May 2024: Employment commences. Complainant performs Specialist-level functions throughout tenure.

Phase 2 — Employment & Deterioration (May 2024 – November 2025)

- June – December 2024: Early psychosocial risk factors emerge. Patterns of derogatory remarks and dismissiveness documented.
- 6 March 2025: FIRST DOCUMENTED THREAT — Jones: 'This is the end of you.' Contemporaneously recorded.
- 18 March 2025: Psychiatric admission — Akeso Stepping Stones (severe depression, PTSD — Dr Jacques Malan, FCPSYCH(SA)).
- 16 May 2025: Dr Malan's psychiatric letter formally delivered to Senior Manager Mapule Mashele. Employer on written notice of disability.
- 23 July 2025: UNLAWFUL DEDUCTION — 40.47% (R14,811.77) deducted without consultation, without consent, in breach of BCEA Section 34(2). Net pay: R15,679.29.
- 24 July 2025: Jones acknowledges 25% statutory cap in writing; simultaneously defends the 40.47% deduction. Critical admission of wilful non-compliance.
- 23 September 2025: 'WILMA' INCIDENT — Jones publicly misgenders complainant in Teams channel with 'NO FILTERING' instruction in red, immediately after complainant proposed filtering strategy.
- 25 September 2025: Formal 11-page discrimination complaint filed. HR promises protection; complainant NOT removed from hostile reporting line.
- 29 September 2025: RETALIATORY DOUBLE UNPAID LEAVE — loaded by Jones on identical day as formal complaint. Reversed by Mashele after escalation. Direct documented retaliation.
- 1 October 2025: Investigation whitewash — 'Wilma' dismissed as 'typo.' Complainant left in Jones's reporting line.
- 23 October 2025: PROTECTED DISCLOSURE (Patient Safety) — Gexus-DMS integration gap formally disclosed. Complainant refuses to contact vulnerable patient on clinically incorrect grounds. Jones labels refusal 'insubordination.'
- 31 October 2025: SMOKING GUN — Jones, recorded: 'You made a case of harassment against me, so I can make a case of harassment against you.' Causal nexus for PDA retaliation established.
- 2 November 2025: Formal 3-page grievance against Jones. 30+ days institutional silence begins.

- 4 December 2025: Final executive escalation (32 attachments). CRO Monwabisi Kula responds with 'festive break' delay.
- 9 December 2025: Priority 1 Material Risk Report submitted to Board (38 attachments): Ethics Committee, Risk Committee, Lead Independent Director, Company Secretary.
- 10 December 2025: Employer files retaliatory CCMA affidavit — characterises diagnosed depression as 'cynical excuse'; seeks costs despite knowledge of financial destitution. Bad faith litigation.
- 12 December 2025: RESIGNATION — Constructive dismissal. Employment terminated due to objectively intolerable conditions.

Phase 3 — Regulatory Escalation (December 2025 – February 2026)

- 23 December 2025: Full regulatory evidence bundle commissioned and submitted to FSCA, CMS, JSE, DEL, B-BBEE Commission, SAHRC, SAPS/NPA.
- 9 January 2026: CCMA conciliation — Commissioner Nthabiseng pre-judges PDA claim before hearing ('Nothing here relates to the PDA'). Refuses opening statement. Certificates of Non-Resolution issued.
- 10 January 2026: Formal CCMA bias complaint filed. Provincial Commissioner investigation ultimately closes without findings — described in formal record as 'cover-up by institutional misdirection.'
- 18 January 2026: Exit documents received but Certificate of Service misrepresents role as 'Care Coordinator.' HR written admission (19 January 2026) confirms naming convention change 'not applied to your department.'
- 4 February 2026: CMS declines jurisdiction — directed to HPCSA.
- 10 February 2026: SANC complaint filed against Jones and Mashele (professional misconduct). SAHRC directs complainant to CCMA/Labour Court.
- 16 February 2026: DEL allocates integrated inspection; UIF referral to Granville Van Wyk. SAPC complaint filed against pharmacist Lisa Mari. Ministerial escalation filed.
- 19 February 2026: Whistleblower House (TWBH) assessment — ultimately declines assistance based on Schroter Law preliminary opinion. Complainant files detailed point-by-point rebuttal.
- 23 February 2026: SAPS Delft unlawfully refuses to open criminal case for UIF non-remittance. Station Commander characterises evidence as 'attitude problem'; usurps NPA prosecutorial function. Audio-recorded.

Phase 4 — Litigation & Active Proceedings (March – April 2026)

- 17 March 2026: Section 162 Director Delinquency application formally served on Board (Fernandes, Munisi, Le Roux, Van Wyk, Mpumlwana). Respondents notified of SENS obligation.
- 19 March 2026: SAPS criminal case registered — CAS 705/3/2026 — following Brigadier Naidoo's intervention. Subsequently transferred to Woodstock SAPS.
- 23 March 2026: Section 162 application (Case 2026-066952) filed on OCJ portal after four rejections including reason 'good day you put date.'
- 25 March 2026: High Court urgent hearing — Judge Anderson presides. Unauthorised third party incident. Struck from roll. Scale C costs order granted. Rule 42 rescission grounds identified; Judicial Conduct Tribunal complaint and LPC complaint intended.
- 2 April 2026: BCEA Section 77A claim filed — Case 2026-077546 (Matthee v AfroCentric Health (RF) (Pty) Ltd).

- 2 April 2026: Formal follow-up to CMS — Gexus-DMS reframed as administrator maladministration under Sections 1, 7, 44, 47, 58 MSA. Discovery Health technical failure precedent cited (CMS confirmed jurisdiction January 2026).

PART D — PROTECTED DISCLOSURE CHAIN

Each disclosure listed below qualifies as a protected disclosure under Section 1 of the Protected Disclosures Act 26 of 2000 (as amended by Act 5 of 2017). Each was followed by documented occupational detriment.

DATE	DISCLOSURE	RECIPIENT	RETALIATORY RESPONSE
May 2025	1st formal PDA: disability discrimination, BCEA breach, victimisation, psychosocial risk	Sr Manager Mashele	Ignored. Retaliation begins. Unlawful July deduction follows.
Jul 2025	Payroll disclosure: 40.47% deduction exceeds BCEA Section 34(2) cap	HR / Payroll	Deduction maintained. Financial destitution.
Sep 2025	Gender identity discrimination complaint (11 pages)	HR / Union	Whitewash investigation. Complainant left in hostile reporting line. Retaliatory leave loaded same day.
Oct 2025	Patient safety disclosure: Gexus-DMS integration gap. Refuses clinically incorrect instruction.	Jones / Management	Insubordination charge. Disciplinary process initiated. Jones recorded admission of retaliation.
Nov 2025	Formal grievance: malicious intent, gaslighting, retaliation	HR / Union	30+ days institutional silence. No response.
Dec 2025	Executive escalation — full evidence pack (32 attachments)	Executive Leadership	'Festive break' delay. De-escalated back to implicated department.
Dec 2025	Priority 1 Material Risk Report (38 attachments)	Board of Directors	Board silence. CRO attempts to suppress further escalation ('stop emailing directors').
Dec 2025	CCMA referral WECT23564-25 and WECT24486-25	CCMA	Retaliatory affidavit: 'cynical excuse'; seeks costs.
Dec 2025	Full regulatory complaints: FSCA, CMS, JSE, DEL, B-BBEE Commission, SAHRC	Multiple bodies	Cascade regulatory deflection — 9 bodies failed.

PART E — GEXUS-DMS SYSTEMIC FAILURE: PATIENT SAFETY DISCLOSURE

E.1 The Disclosure

On 23 October 2025, Matthee formally disclosed that the Disease Management System (DMS) and the Gexus claims system at Medscheme were not communicating correctly. When GEMS member 000655789 Dependent 02 transitioned from acute to chronic benefit (January 2025), Gexus began recording chronic claims from April 2023 onward — but DMS did not receive or recognise this update. The result: automated non-adherence letters dispatched on 19 May 2025 and 19 October 2025 to a compliant, elderly beneficiary.

A Root Cause Analysis (RCA) confirmed the gap is architectural — a structural design flaw, not an isolated clerical error — affecting all GEMS members undergoing the acute-to-chronic benefit transition. The 1.9 million GEMS beneficiaries are at structural risk.

E.2 The Suppression

Matthee's disclosure was met with an 'insubordination' charge when he refused to contact the vulnerable patient on clinically incorrect grounds. The Priority 1 Material Risk Report submitted to the Board on 9 December 2025 — documenting this failure with full RCA — was met with silence. The Board's non-response, confirmed in the Master Register, constitutes a primary ground in the Section 162 Director Delinquency Application (Case 2026-066952).

E.3 CMS Re-Engagement (2 April 2026)

The formal follow-up to the Council for Medical Schemes (2 April 2026) reframed the disclosure from a professional conduct complaint to administrator maladministration — falling squarely within CMS jurisdiction under Sections 1, 7, 44, 47, and 58 of the Medical Schemes Act 131 of 1998. The Discovery Health pharmacy processing error precedent (January 2026 — CMS confirmed jurisdiction) establishes that technical system failures at administrators are within CMS mandate. CMS cannot credibly maintain that technical system failures at administrators fall outside its jurisdiction when it demonstrably exercised that jurisdiction for a financial processing glitch affecting 16,507 DHMS members. The Gexus-DMS failure carries direct clinical implications for patient safety — a materially higher threshold.

E.4 CMS Statutory Duties Engaged

DISCLOSURE ELEMENT	CMS STATUTORY DUTY	MSA PROVISION
Systemic Gexus-DMS integration error	Investigate maladministration & system integrity	Sections 1 & 47
Ongoing patient safety risk — 1.9M GEMS members	Protect beneficiary interests	Section 7
Priority 1 risk suppression at Board level	Review fitness for accreditation	Section 58
High Court director delinquency application (2026-066952)	Consider forensic inspection	Section 44

PART F — B-BBEE FRONTING FORENSIC ANALYSIS

F.1 Legal Threshold

Section 1(c) of the B-BBEE Act 53 of 2003 defines fronting as: the conclusion of a legal relationship with a black person for the purpose of achieving B-BBEE compliance without granting that person the economic benefits reasonably associated with their status or position. Section 13J criminalises fronting. Section 13J(5) prohibits submission of false information regarding B-BBEE status. Section 13K grants the Commission mandatory subpoena powers.

F.2 Forensic Evidence — Element Analysis

FRONTING ELEMENT	DOCUMENTARY EVIDENCE	FINDING
Legal relationship concluded	Appointment letter (09 Apr 2024) — 'Care Coordinator' Grade B4M1	ESTABLISHED
Purpose: B-BBEE compliance	NQF Level 8 black professional; recruited for 'Specialist: Care Manager' — management control role	Prima facie established
Without granting economic benefits	Paid at B4M1 (junior grade); 40.47% unlawful deduction; Certificate suppresses title	ESTABLISHED
Status/position actually held	Recruited as Specialist; Naming Convention: 'Case Manager'; managed 13+ staff; H&S Acting Chairperson	ESTABLISHED

F.3 Title Suppression — The Architecture of Fronting

The Naming Convention meeting (May 2025) directed employees to update titles to 'Case Manager.' Matthee complied (email signature updated 15 October 2025). HR written admission (Cheryl-Dawn Modern, 19 January 2026): 'The naming convention changes... I can confirm that no changes to the Care Co-Ordinator job title for your department have been implemented.' This selective exclusion — applying the naming convention to all departments except the complainant's — serves dual purposes: maintaining the B-BBEE scorecard benefit of an NQF Level 8 appointment while preserving the documentary fiction of a junior role, and denying the complainant the professional title that would support his legal claims.

F.4 Commission Failure

The B-BBEE Commission's Notice of Non-Investigation (30 March 2026) constitutes a reviewable administrative decision under PAJA Section 6(2)(e)(iii) — failure to take relevant facts into consideration. The Commission: (1) ignored the Naming Convention evidence; (2) ignored the HR written admission; (3) ignored the false Certificate of Service; (4) failed to exercise subpoena power under Section 13K to obtain the Naming Convention Teams recording; and (5) failed to sever the fronting allegations from the labour components, instead rejecting the entire complaint.

PART G — SANC PROFESSIONAL MISCONDUCT COMPLAINT

A formal complaint of professional misconduct was submitted to the South African Nursing Council on 10 February 2026 against two registered nurses: Mary-Ann Jones (Team Leader) and Mapule Mashele (Senior Manager). The complaint reference is SANC/MEDSCHEME/MATTHEE/20260105.

G.1 Allegations Against Mary-Ann Jones

- Discrimination & Harassment: 'Wilma' misgendering in Teams communication (23 September 2025). SANC Code of Ethics Clauses 2.1 (dignity) and 2.3 (non-discrimination); Nursing Act Section 56(1)(a).
- Neglect of Duty of Care: Instructed Matthee to 'leave the premises immediately' during a documented psychiatric crisis (21 May 2025) without ensuring safe transport or immediate support. SANC Code Clause 3.1; SANC Rule 15(1)(c) — abandonment.
- Retaliatory Conduct: Loaded double punitive unpaid leave on 29 September 2025 — identical day to formal discrimination complaint. Recorded admission (31 October 2025): 'You made a case of harassment against me, so I can make a case of harassment against you.' SANC Code Clause 6; Rule 15(1)(k).
- Patient Safety Obstruction: Instructed complainant to perform clinically incorrect action on a vulnerable 75-year-old patient despite knowledge of Gexus-DMS system error. SANC Code Clause 7; Rule 15(1)(h).

G.2 Allegations Against Mapule Mashele

- Suppression of Disclosures: Dismissed 'Wilma' complaint as 'typo' in writing; failed to act on Priority 1 Material Risk Report; de-escalated protected disclosure back to implicated department (5 December 2025). SANC Code Clauses 7 and 8; Rule 15(1)(h).
- Misuse of Confidential Medical Information: Possessed Dr Malan's psychiatric diagnosis prior to authorising the 40.47% unlawful deduction. Failed to provide reasonable accommodation. SANC Code Clause 4 (confidentiality); principle of non-maleficence.
- Unethical Leadership: Delegated discrimination investigation back to the perpetrator; refused impartial grievance process; participated in institutional whitewash. SANC Code Clause 8; Nursing Act Section 56(1)(d).

The SANC has not responded to the complaint. A ministerial escalation was filed to the Minister of Health (16 February 2026). The National Department of Health acknowledged receipt and requested full correspondence (17-18 February 2026). SANC's silence constitutes a further failure of professional regulatory oversight.

PART H — SAHRC FORMAL UPDATE (13 MARCH 2026)

The following constitutes a summary of the comprehensive update submitted to the South African Human Rights Commission — Western Cape Provincial Office on 13 March 2026, placed on formal record in this portfolio.

H.1 Forensic Payroll Misrepresentation

Cross-referencing the July 2025 payslip against the Respondents' SARS/UIF declarations reveals a material discrepancy:

Gross (Payslip)	R21,777.04
Declared to SARS/UIF	R27,725.66
Discrepancy	R5,948.62 — in the identical pay cycle as the unlawful 40.47% deduction

The declared figure of R27,725.66 appears to reflect a pre-deduction or notional salary — reported to government authorities as having been paid while simultaneously R14,811.77 was being recovered from actual take-home pay. A statutory declaration to SARS or the UIF Fund that does not correspond to actual net remuneration paid is not an administrative oversight. It is a misrepresentation to a government authority in a document required by law to be accurate. The cross-financial-year structuring of the deduction (underlying leave event arising in May-June 2025; deduction applied in July 2025 — the new financial year) constitutes a further structural anomaly.

H.2 Consolidated Record of Institutional Failures (as at 13 March 2026)

BODY	STATUS
CCMA	FAILED — Commissioner pre-judged PDA claim. Refused opening statement. Laughed at settlement position. Departed with Respondent's representative.
CCMA Provincial Commissioner	COVER-UP — Commissioner's conduct never investigated; misdirected.
Department of Employment & Labour	SILENT — No enforcement; active UIF non-remittance continues; false compliance representation (19 Jan 2026) unaddressed.
SAPS Delft	REFUSED — Unlawfully declined to open criminal case. Reversed by Brigadier Naidoo.
Labour Court Registry	OBSTRUCTING — 8 days; 7+ call centre attempts; deleted portal profile; trivial rejection reason; inaccessible post-rejection.
Whistleblower House	SILENT — Declined 50 minutes after receiving detailed rebuttal.
SANC	SILENT — Deregistration caused by unlawful deduction. No response to professional misconduct complaint.

South African Pharmacy Council	SILENT — No substantive response.
Council for Medical Schemes	DEFLECTED — Declined primary jurisdiction; re-engaged April 2026 on maladministration grounds.
JSE	DECLINED — Referred to CCMA/Labour Court. No SENS obligation triggered.
B-BBEE Commission	FAILED — Ignored fronting evidence; failed to exercise Section 13K subpoena powers.

H.3 Humanitarian Crisis — Confirmed Status (13 March 2026)

- Four months rental arrears; landlord confirmed eviction by end of March 2026.
- Personal property physically removed by loan sharks as informal security.
- No running water at residence since January 2026.
- Income: none. No savings. No credit access. UIF inaccessible.
- Retirement fund: R48,400 forcibly withdrawn — decade of savings depleted.
- SANC deregistration: cannot practise nursing in 2026.
- Accepted for CPUT PGDip Occupational Health Nursing 2026 — unable to enrol.
- Formally diagnosed severe depression and PTSD (Dr Jacques Malan, FCPSYCH(SA)).
- Self-represented in nine concurrent regulatory proceedings. No legal aid.

The causal chain is direct and documented: the unlawful R14,811.77 deduction on 23 July 2025 — imposed without consent, without consultation, in breach of the statutory cap, while the employer held a specialist psychiatrist's written warning of vulnerability — initiated a cascade of financial collapse compounded by the complete failure of every institution approached for help.

PART I — ACTIVE PROCEEDINGS & OUTSTANDING MATTERS

FORUM / CASE	SUBJECT	STATUS	URGENCY
WC High Court 2026-066952	Section 162 Director Delinquency	Rule 42 Rescission Pending	CRITICAL
WC High Court 2026-077546	BCEA Section 77A — Unlawful Deduction	Filed 2 April 2026	HIGH
Labour Court WECT23564-25	Unfair Labour Practice	Certificate of Non-Resolution	HIGH
Labour Court WECT24486-25	Automatically Unfair Constructive Dismissal	Certificate of Non-Resolution	HIGH
B-BBEE Commission 5/02/2026	Fronting Practice Investigation	Active Engagement	HIGH
SAPS CAS 705/3/2026	Criminal: UIF Non-Remittance	Transferred to Woodstock	HIGH
CMS — April 2026	Gexus-DMS Maladministration (MSA)	Awaiting substantive response	HIGH
SANC Complaint	Professional Misconduct (Jones & Mashele)	No response — escalated to Minister	MEDIUM
SAHRC	Dignity, Equality, Access to Justice	Awaiting feedback	MEDIUM
DEL — UIF Unit	UIF Non-Compliance June 2025	Referred to Granville Van Wyk	HIGH
NDOH / Minister of Health	SANC Non-Response	NDOH engaged; documents requested	MEDIUM

PART J — EVIDENCE ANNEXURE INDEX

The following annexures form the evidentiary foundation of this portfolio. All are authentic, contemporaneous documents. References marked KEY EXHIBIT are primary evidence in active proceedings.

REF	DOCUMENT	EVIDENTIARY SIGNIFICANCE
A	Interview invitation documentation (Jan–Apr 2024)	Establishes recruitment for 'Specialist: Care Manager' — foundational bait-and-switch / B-BBEE fronting evidence.
B	Employment contract (09 April 2024)	'Care Coordinator' Grade B4M1 despite Specialist recruitment — core title suppression document.
C	Dr Jacques Malan psychiatric letter (16 May 2025)	KEY EXHIBIT — Disability formally disclosed to employer before unlawful deduction. Establishes bad faith and disability knowledge.
D	Jones 'no staggering' statement (16 April 2025)	Employer's written position contradicts HCBP Policy — predates and contextualises July deduction.
E	July 2025 payslip — 40.47% deduction	KEY EXHIBIT — Quantifies BCEA Section 34(2) breach. Net pay R15,679.29; deduction R14,811.77.
F	Jones AOD Policy acknowledgement (24 July 2025)	KEY EXHIBIT — Employer knew 25% cap; wilfully exceeded it. 'This is for disability.'
G	'Wilma' Teams screenshot (23 September 2025)	EEA Section 6 — gender identity discrimination. Direct evidence.
H	Formal 11-page discrimination complaint (25 September 2025)	Anchor document for PDA retaliation chain. Establishes protected activity.
I	Retaliatory double unpaid leave entry (29 September 2025)	Loaded same day as formal complaint; reversed after escalation. Written proof of retaliatory discretion.
J	Mashele whitewash closure (01 October 2025)	'Typo' finding — Matthee not removed from hostile reporting line. Institutional bad faith.
K	Gexus-DMS RCA and disclosure (23 October 2025)	PDA-protected patient safety disclosure. Architectural integration flaw. 1.9M GEMS beneficiaries at risk.
L	Recorded retaliatory admission (31 October 2025)	SMOKING GUN — Jones: 'You made a case of harassment against me, so I can make a case of harassment against you.' Audio recording.
M	Formal 3-page grievance (02 November 2025)	Initiates 30+ day institutional silence. Establishes futility of internal remedies.
N	Priority 1 Material Risk Report (09 December 2025)	Board-level governance escalation — 38 attachments. Suppression = Section 162 delinquency ground.
O	Employer opposing CCMA affidavit (10 December 2025)	'Cynical excuse'; seeks costs. Bad faith litigation — retaliation under oath.
P	Resignation letter (12 December 2025)	Cites opposing affidavit as final intolerable act. LRA Section 186(1)(e) constructive dismissal.
Q	CCMA Certificates of Non-Resolution (09 January 2026)	WECT23564-25 & WECT24486-25 — jurisdictional gateway to Labour Court.
R	Cheryl-Dawn Modern written admission (19 January 2026)	KEY EXHIBIT — 'Naming convention not applied to your department.' Core B-BBEE fronting evidence.
S	uFiling extract — June 2025 'No Information'	Criminal evidence — UIF contributions deducted, not remitted. SAPS CAS 705/3/2026.
T	July 2025 SARS/UIF declared salary vs payslip (R5,948.62 gap)	Forensic payroll misrepresentation — potential statutory false declaration to government.
U	CMS follow-up letter (02 April 2026)	Reframes Gexus-DMS as administrator maladministration. Discovery Health precedent cited. MSA Sections 1, 7, 44, 47, 58.

V	SANC complaint (10 February 2026)	Professional misconduct — Jones & Mashele. Supported by Annexures B1, C3, C4, D1, D2, E2, E3, E6, E9, F4, G0, I1.
W	B-BBEE Forensic Report (April 2026)	EthicHawks forensic analysis — fronting elements, Commission failure, PAJA review grounds.
X	Master Forensic Governance & Regulatory Register (03 April 2026)	Definitive 148-entry chronological record across all four phases. Primary trial preparation document.
Y	SAHRC comprehensive update (13 March 2026)	Payroll forensic finding; CCMA bias; Labour Court obstruction; SAPS refusal; imminent eviction.
Z	SAPS SMS CAS 705/3/2026 (19 & 25 March 2026)	Criminal case registration and transfer confirmation — active investigation.

PART K — PARLIAMENTARY SUBMISSION STATEMENT

This portfolio is submitted to Parliament — specifically to the Portfolio Committees on Health, Employment & Labour, Trade Industry & Competition, and Justice & Constitutional Development — in terms of the constitutional right of access to the National Legislature under Section 56 of the Constitution.

The matters documented in this portfolio are not personal grievances between an employee and an employer. They are matters of constitutional, clinical, and governance significance that require parliamentary attention because:

- A systemic patient safety risk (Gexus-DMS) affecting 1.9 million GEMS beneficiaries has been formally documented, internally escalated, and suppressed at Board level. It remains unremediated.
- A formally disabled whistleblower was subjected to induced destitution — rendered homeless, unable to practise his profession, unable to afford medication — as a direct consequence of the Respondent's unlawful conduct and the complete failure of eleven statutory institutions to provide any effective remedy.
- The regulatory 'passed bucket' pattern documented in this portfolio — nine of eleven institutions deflecting to another forum — constitutes a systemic access to justice failure that no single litigant should be required to absorb alone.
- The B-BBEE fronting architecture documented herein raises questions about the integrity of B-BBEE compliance reporting within the healthcare administration sector and the Commission's capacity to investigate substantive fronting allegations when they are accompanied by documentary evidence.
- The CCMA's institutional bias, the Labour Court's portal failures, and the SAPS's initial unlawful refusal to open a criminal case against a JSE-listed employer collectively constitute systemic failures of the criminal and civil justice infrastructure that warrant parliamentary oversight.

This portfolio respectfully requests that the relevant Portfolio Committees:

1. Call for a full parliamentary inquiry into the Gexus-DMS systemic integration failure and its impact on GEMS beneficiaries.
2. Direct the Council for Medical Schemes to provide Parliament with a report on its handling of this protected disclosure and the current remediation status of the Gexus-DMS integration gap.
3. Direct the B-BBEE Commission to account for its failure to use statutory subpoena powers under Section 13K and its refusal to investigate documented fronting evidence.
4. Direct the Department of Employment and Labour to report on the status of UIF non-compliance by Medscheme Holdings and the outcome of the integrated inspection instruction.
5. Direct SANC to report on its handling of the professional misconduct complaint and the SANC deregistration of the Complainant caused directly by the Respondent's unlawful conduct.
6. Consider whether the concentration of regulatory deflection documented in this matter indicates systemic gaps in the legislative architecture protecting whistleblowers, warranting amendment to the Protected Disclosures Act.

PART L — RELIEF SOUGHT

L.1 Judicial Relief

- Declaration of automatically unfair constructive dismissal (LRA Sections 186(1)(e) and 187(1)(f)).
- Compensation and/or reinstatement as determined by the Labour Court.
- Payment of unlawfully deducted salary (R14,811.77) with interest (BCEA Section 77A — Case 2026-077546).
- Rule 42 rescission of Scale C costs order (Case 2026-066952) on grounds of unauthorised third party, procedural irregularity, and Biowatch principle.
- Director delinquency declarations under Companies Act Section 162(5)(c) against Fernandes, Munisi, Le Roux, Van Wyk, and Mpumlwana.

L.2 Regulatory Relief

- Formal whistleblower protection recognition under the Protected Disclosures Act 26 of 2000.
- CMS forensic inspection of Medscheme's administrator accreditation and Gexus-DMS remediation status under MSA Section 44.
- B-BBEE Commission investigation of fronting allegations using Section 13K subpoena powers.
- DEL enforcement action for UIF non-remittance and BCEA violations.
- SANC investigation and disciplinary proceedings against Jones and Mashele.
- FSCA investigation of governance failures and market conduct non-compliance.

L.3 Parliamentary Relief

- Parliamentary inquiry into Gexus-DMS systemic patient safety risk.
- Oversight of all regulatory bodies' handling of this matter.
- Legislative review of PDA protections in light of documented access to justice failures.

CLOSING DECLARATION

I, Wilbur William Matthee, declare that this Consolidated Protected Disclosure Evidence Portfolio is a true and accurate record of the events, disclosures, institutional responses, and harm documented herein. All documents referenced exist and will be produced on request. All statements are based on my personal knowledge, contemporaneous documentation, and authentic records.

I did not seek conflict. I sought dignity, safety, and the opportunity to discharge my professional obligations as a registered nurse with 18 years of clinical governance experience. Every escalation documented in this portfolio was preceded by an attempt to resolve the matter internally. Every regulatory complaint followed the exhaustion of internal remedies. Every court filing followed the failure of regulatory intervention.

I place this portfolio before Parliament, the courts, and the regulatory authorities as the final institutional mechanism available to me — with the last of the strength I have — trusting that the principles of fairness, dignity, and justice that every person in this country deserves will be honoured.

WILBUR WILLIAM MATTHEE

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Date: April 2026

Signature: _____

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